

Amendment No. 1 to SB1381

Crowe
Signature of Sponsor

AMEND Senate Bill No. 1381

House Bill No. 783*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 51, is amended by adding the following new part:

7-51-2601.

As used in this part:

(1) "Alcohol and drug services" has the same meaning as defined in § 33-2-1401;

(2) "Healthcare provider" means a healthcare professional licensed under title 63 or 68 whose scope of practice includes the diagnosis and treatment of alcohol, drug, and substance abuse;

(3) "Local government" means a county, and an incorporated city or town within such county, with a population of not less than three hundred sixty-six thousand two hundred (366,200) and not more than three hundred sixty-six thousand three hundred (366,300), according to the 2020 or a subsequent federal census;

(4) "Operator" means the lawful owner of a sober living home or a person or entity designated by such lawful owner to have primary responsibility for the daily operation of such sober living home; and

(5) "Sober living home" means an alcohol-free and drug-free residence where unrelated adults who are recovering from alcohol, drug, or substance

abuse choose to live together in a supportive environment during their recovery where no formal alcohol and drug services are provided.

7-51-2602.

(a) The governing body of a local government may adopt an ordinance or resolution:

(1) Requiring a sober living home located at a distance equal to or less than one thousand feet (1,000') from a kindergarten through grade twelve (K-12) educational facility, preschool, or daycare facility to be recognized or certified by an organization, as defined under § 33-2-1401, that is included on a list of approved organizations maintained on the website of the department of mental health and substance abuse services; provided, that the ordinance or resolution with respect to such distance requirement must not apply to a sober living home in operation prior to the effective date of this act until such home ceases operation;

(2) Regulating the location or operation of a sober living home within the jurisdiction of the local government, including, but not limited to, ensuring compliance with applicable state and local zoning laws, and applicable health, safety, fire, and building codes; and

(3) Requiring that an operator, prior to authorizing an individual to reside in a sober living home, receive a recommendation or referral from a licensed healthcare provider or a court that the individual reside in a sober living home.

(b) An ordinance or resolution adopted pursuant to subsection (a) must comply with the Fair Housing Act, as amended (42 U.S.C. §§ 3601 et seq.) and the Americans with Disabilities Act of 1990 (42 U.S.C. §§ 12101 et seq.).

SECTION 2. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that

can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.